

TRANSCRIPT OF TELEPHONE CALL

DATE: [Date of call not specified]

PARTIES:

- Caller: "Don Matthews" (pseudonym)
 - Recipients: Mark Arrington (Layton City Prosecutor) and Receptionist/Assistant
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RECEPTIONIST: Yeah, Mark Arrington please.

DON MATTHEWS: [Inaudible]

RECEPTIONIST: Let me see if he's available, just a moment.

RECEPTIONIST: All right.

MARK ARRINGTON: Hey, uh, what's going on?

DON MATTHEWS: Mark, uh, now this, this is Don Matthews.

MARK ARRINGTON: Okay, whatever name you want to go-

DON MATTHEWS: Let me, let me ask you, let me ask you this. I was, I was really, I was asleep this morning whenever you called. I, it's, I, I vaguely... Actually, whenever I got up and got going, I was questioning whether or not you actually called. And I looked at the phone and saw that you had. So where did you come up with this information about Matthew Reardon? On your YouTube channel.

MARK ARRINGTON: You told me yesterday you were a journalist, right?

DON MATTHEWS: That's correct.

MARK ARRINGTON: Okay. And you also told me that you were kind of freelance, right?

DON MATTHEWS: Right, exactly.

MARK ARRINGTON: You told me you were not affiliated with anything local. I asked you about the Salt Lake Tribune, KSL, Standard Examiner, you know, KNRS. Those are our local news channels. And you said you weren't affiliated locally, right?

DON MATTHEWS: Correct.

MARK ARRINGTON: Okay. So I thought, well, if he's an independent journalist, he's not affiliated locally, he's not really tied with anybody. I thought he's probably on Instagram or Facebook or YouTube. And I

kind of like you, actually. So I thought, oh, take a look. Pull up YouTube. There's Matthew. How did you pull me? It's on YouTube, right? You have like 3.6 thousand followers?

DON MATTHEWS: Yes.

MARK ARRINGTON: Well, I'm watching and there's this 2017, I think it's 2017, it says on Mississippi. How did you even find that channel?

DON MATTHEWS: I just went to YouTube.

MARK ARRINGTON: But what did you type in?

DON MATTHEWS: I just typed in Matthew and started going through all the YouTubes. I mean, there's cars being fixed, there's washers and dryers being repaired.

MARK ARRINGTON: I mean, but how did you even find out Matthew? I didn't-

DON MATTHEWS: Your picture, but how did you even find out Matthew to type in Matthew?

MARK ARRINGTON: Because, because I told you I was Don. I told you I was Don, so then I typed in... I saw the video, it's like an hour and 12 minutes, you're walking around downtown, you got an AR-15, you got your flag, right?

DON MATTHEWS: Well, no, that's... but you knew me as... you knew me as-

MARK ARRINGTON: So then I typed in Oxford, Mississippi, Matthew Reardon. Hold on. Hey, stop a second. Stop a second. But it doesn't matter. My name...

DON MATTHEWS: Okay, I get that. I got a couple of questions for you.

MARK ARRINGTON: No, that's the thing I'm trying to ask you about that. You think...

DON MATTHEWS: Hey, no, I did not... hey, listen, listen here, listen here. I've got a question about the public records. Okay, I'm not gonna come down there and pick them up. I'm gonna send a friend to come. Can my friend, can my friend come pick them up?

DON MATTHEWS: I speak to Mark.

RECEPTIONIST: Yes, just clean Don Matthews.

DON MATTHEWS: Hello?

RECEPTIONIST: Hi, he is busy working on a project at the moment.

DON MATTHEWS: Oh.

RECEPTIONIST: I can put you to his voicemail.

DON MATTHEWS: No, okay. I'm sure. Hey, let me ask you this something real quickly and then yeah, send me to his voicemail. So I'm going to send a friend up there to go and get the records. Are y'all going to make him show ID? And can he pick up those records for me?

RECEPTIONIST: I believe you're going to have to ask that question to the police department. He would for sure have to show ID if they would allow him to pick it up or not.

DON MATTHEWS: Well, see, this is the crazy part. As Mark just hung up the phone, he wouldn't answer my question. I know he's back there, and I know he can pick up the phone. He's dodging. He can.

RECEPTIONIST: I also know that he is extremely busy. He's working on a project he's not even supposed to be working today.

DON MATTHEWS: Oh, I know. He's probably working on a project of wasting city resources, running illegal searches on private citizens. This is absolutely ludicrous, the stuff that I just found out about him. So I'm putting him on notice. There are multiple violations. Absolutely. But yeah, I just needed to find out about my friend coming and picking that stuff up.

RECEPTIONIST: Okay. So I'm going to put you in his voicemail and then you can call the police records department and you can ask them that question if he would be allowed or not.

VOICEMAIL RECORDING: You've reached Mark Harrington, Layton City Prosecutor. Please leave a message and I'll get back to you as soon as I can. Thank you for calling. Goodbye. Record your message at the tone. When you are finished, hang up or press pound for more options.

DON MATTHEWS: Mark, this is Don Matthews. Glad to see you're going to waste the city's fucking resources to run illegal searches on somebody completely full of shit. And then you're going to hang up the phone on me. I'm trying to find out, okay? I don't care if you call me back or not. I don't give a shit. But I'm trying to find out if my friend can go over there and go and pick up the records and if he's going to have to show ID. That's all I want to know. What you're doing is wrong. You should know it's wrong. And your qualified immunity will not survive this. Take care.

[END OF TRANSCRIPT]